

The Maharashtra Prohibition Of Ragging Act, 1999.

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State of Maharashtra - Act

The Maharashtra Prohibition Of Ragging Act, 1999.

MAHARASHTRA

India

The Maharashtra Prohibition Of Ragging Act, 1999.

Act 33 of 1999

Published in Gazette 33 on 19 January 2017

Assented to on 19 January 2017

Commenced on 19 January 2017

[This is the version of this document from 19 January 2017.]

[Note: The original publication document is not available and this content could not be verified.]

The Maharashtra Prohibition Of Ragging Act, 1999.

No. XXXIII of 1999.

(This Act received the assent of the Governor on the 13th May 1999; assent was first published in the Maharashtra Government Gazette, Part IV, Extraordinary, on the 15th May 1999.)

An Act to prohibit ragging in educational institutions in the State of Maharashtra.

WHEREAS it is expedient to enact a special law to prohibit ragging in educational institutions in the State of Maharashtra ; It is hereby enacted in the Fiftieth Year of the Republic of India as follows :?

1.

Short title and commencement.

(1)

This Act may be called the Maharashtra Prohibition of Ragging Act, 1999.

(2)

It shall come into force on such date as the State Government may, by notification in the Official Gazette, appoint.

2.

Definitions.

In this Act, unless the context otherwise requires,?

(a)

"educational institution" means and includes a college, or other institution by whatever name called, carrying on the activity or imparting education therein (either exclusively or among other activities); and includes an orphanage or a boarding home or hostel or a tutorial institution or any other premises attached thereto;

(b)

"head of the educational institution" means the Vice-Chancellor of the University, Dean of Medical Faculty, Director of the Institution or the Principal, Headmaster or the person responsible for the management of the educational institution;

(c)

"ragging" means display of disorderly conduct, doing of any act which causes or is likely to cause physical or psychological harm or raise, apprehension or fear or shame or embarrassment to a student in any educational institution and includes?

(i)

teasing, abusing, threatening or playing practical jokes on, or causing hurt to, such student; or

(ii)

asking a student to do any act or perform something which such student will not, in the ordinary course, willingly, do.

3.

Prohibition of ragging.

Ragging within or outside of any educational institution is prohibited.

4.

Penalty for ragging.

Whoever directly or indirectly commits, participates in, abets or propagates ragging within or outside any educational institution shall, on conviction, be punished with imprisonment for a term which may extend to two years and shall also be liable to a fine which may extend to ten thousand rupees.

5.

Dismissal of student.

Any student convicted of an offence under section 4 shall be dismissed from the educational institution and such student shall not be admitted in any other educational institution for a period of five years from the date of order of such dismissal.

6.

Suspension of student.

(1)

Whenever any student or, as the case may be, the parent or guardian, or a teacher of an educational institution complains, in writing, of ragging to the head of the educational institution, the head of that educational institution shall, without prejudice to the foregoing provisions, within seven days of the receipt of the complaint, enquire into the matter mentioned in the complaint and if, prima facie, it is found true, suspend the student who is accused of the offence, and shall, immediately forward the complaint to the Police Station having jurisdiction over the area in which the educational institution is situated, for further action.

(2)

Where, on enquiry by the head of the educational institution, it is proved that there is no substance, prima facie, in the complaint received under sub-section (1), he shall intimate the fact, in writing, to the complainant.

(3)

The decision of the head of the educational institution that the student has indulged in ragging under sub-section (1), shall be final.

7.

Deemed abetment.

If the head of the educational institution fails or neglects to take action in the manner specified in section 6 when a complaint of ragging is made, such person shall be deemed to have abetted the offence of ragging and shall, on conviction, be punished as provided for in section 4.

8.

Power to make rules.

(1)

The State Government may, by notification in the Official Gazette, make rules for carrying out all or any of the purposes of this Act.

(2)

Every rule made under this Act shall be laid, as soon as may be, after it is made, before each House of the State Legislature, while it is in session for a total period of thirty days, which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session in which it is so laid or the session immediately following, both Houses agree in making any modification in the rules or both Houses agree that the rule should not be made, and notify such decision in the Official Gazette, the rule shall, from the date of publication of such notification, have effect only in such modified form or be of no effect, as the case may be ; so however, that any such modification or annulment shall be without prejudice to the validity of anything previously done or omitted to be done under that rule.

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